

PUBLISHED IN THE WICHITA EAGLE ON 12/14/2018

ORDINANCE NO.50-906

AN ORDINANCE PROVIDING FOR THE ACQUISITION BY EMINENT DOMAIN OF CERTAIN PRIVATE PROPERTY, EASEMENTS AND RIGHT-OF-WAY THEREIN, FOR THE PURPOSE OF ACQUIRING REAL PROPERTY FOR THE IMPROVEMENT OF WEST STREET FROM KELLOGG AVENUE TO HARRY STREET IN THE CITY OF WICHITA, SEDGWICK COUNTY, KANSAS; DESIGNATING THE LANDS REQUIRED FOR SUCH PURPOSES AND DIRECTING THE CITY ATTORNEY TO FILE A PETITION IN THE DISTRICT COURT OF SEDGWICK COUNTY, KANSAS, FOR ACQUISITION OF THE LANDS AND EASEMENTS THEREIN TAKEN.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That it be and is hereby declared to be a public necessity to acquire by eminent domain proceedings for the purpose of public right-of-way for the development of infrastructure associated with the improvement of West Street between Kellogg Avenue and Harry Street in the City of Wichita, Sedgwick County, Kansas, the lands and easements hereinafter described in Section 2.

SECTION 2. That the description of the lands and title therein necessary for the purpose of such action is as follows:

Clear and complete title for the uses and purposes herein set forth in and to the following-described tracts, to-wit:

Fee simple title in and to the following described tracts, to-wit:

All that part of the Northwest Quarter of Section 36, Township 27 South, Range 1 West of the Sixth Principal Meridian, and being a part of Lot 1, Block 1, WEST WAREHOUSE ADDITION, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Northwest corner of said Northwest Quarter; thence South 00°42'40" East, along the West line of said Northwest Quarter, a distance of 64.51 feet; thence North 89°17'20" East, a distance of 50.00 feet to the **Point of Beginning**, said point being on the existing East Right of Way line of West Street, as previously established; thence North 00°42'40" West, along said existing East Right of Way line, a distance of 25.00 feet to the intersection of said East Right of Way line and the South Right of Way line of Wall Street, as previously established; thence North 88°43'46" East, along the South Right of Way line of Wall Street, a distance of 25.00 feet; thence South 44°00'33" West, a distance of 35.53 feet to the **Point of Beginning**. (Tract 1)

All that part of Lot 1, JOHN L. MILLER ADDITION, a subdivision of land in the Northeast Quarter of Section 35, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in

the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Northeast corner of said Section 35; thence South 00°42'40" East, along the East line of the Northeast Quarter of said Section 35, a distance of 75.69 feet; thence South 89°17'20" West, a distance of 50.00 feet to the **Point of Beginning**, said point being on the West Right of Way line of West Street, as previously established; thence North 46°06'13" West, a distance of 35.11 feet to a point on the South Right of Way line of Harry Street, as previously established; thence North 88°30'14" East, along the South Right of Way line of said Harry Street, a distance of 25.00 feet to the intersection of the South Right of Way line of said Harry Street and the West Right of Way line of said West Street; thence South 00°42'40" East, along the West Right of Way line of said West Street, a distance of 25.00 feet to the **Point of Beginning**. (Tract 2)

All that part of Lot 9, LOS COYAS ADDITION, a subdivision in the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of said Section 25; thence North 01°17'34" West, along the West line of said Southwest Quarter, a distance of 1142.94 feet; thence North 88°42'26" East, a distance of 40.00 feet to the **Point of Beginning**, said point being on East Right of Way line of West Street, as previously established; thence North 01°17'34" West, along said East Right of Way line, a distance of 150.00 feet to the intersection of said East Right of Way line and the South Right of Way line of Walker Avenue, as previously established; thence North 88°43'46" East, along the South Right of Way line of Walker Avenue, a distance of 25.00 feet; thence South 29°40'37" West, a distance of 29.15 feet; thence South 01°17'34" East, parallel with the East Right of Way line of West Street, a distance of 125.00 feet; thence South 88°43'46" West, a distance of 10.00 feet to the **Point of Beginning**. (Tract 9)

All that part of Lot 8, LOS COYAS ADDITION, a subdivision of land in the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 32.09 feet; thence North 88°47'07" East, a distance of 40.00 feet to the **Point of Beginning**, said point being at the intersection of the East Right of Way line of West Street, as previously established and the North Right of Way line of Walker Avenue, as previously established; thence North 01°12'53" West, along the West Right of Way line of said West Street, a distance of 150.00 feet; thence North 88°48'27" East, a distance of 10.00 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 129.99 feet; thence South 46°14'33" East, a distance of 28.27 feet to a point on the North Right of Way line of said Walker Avenue; thence South 88°43'46" West, along the North Right of Way line of said Walker Avenue, a distance of 30.00 feet to the **Point of Beginning**. (Tract 10)

All that part of the Northeast Quarter of the Southeast Quarter of Section 26, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southeast corner of the Northeast Quarter of the Southeast Quarter of said Section 26; thence North 01°12'53" West, along the East line of the Northeast Quarter of the Southeast Quarter of said Section 26, a distance of 66.80 feet; thence South 88°47'07" West, a distance of 40.00 feet to the **Point of Beginning**, said point being on the West Right of Way line of West Street, as previously established; thence South 88°29'49" West, a distance of 10.00 feet; thence North 01°12'53" West, parallel with the West Right of Way line of said West Street, a distance of 67.05 feet; thence North 88°29'49" East, a distance of 10.00 feet to a point on the West Right of Way line of said West Street; thence South 01°12'53" East, along the West Right of Way line of said West Street, a distance of 67.05 feet to the **Point of Beginning**. (Tract 12)

All that part of the Northeast Quarter of the Southeast Quarter of Section 26, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southeast corner of the Northeast Quarter of the Southeast Quarter of said Section 26; thence North 01°12'53" West, along the East line of the Northeast Quarter of the Southeast Quarter of said Section 26, a distance of 490.88 feet; thence South 88°47'07" West, a distance of 30.00 feet to the **Point of Beginning**, said point being on the West Right of Way line of West Street, as previously established; thence South 88°27'07" West, a distance of 20.00 feet; thence North 01°12'53" West, parallel with the West Right of Way line of said West Street, a distance of 140.00 feet; thence North 88°27'07" East, a distance of 20.00 feet to a point on the West Right of Way line of said West Street; thence South 01°12'53" East, along the West Right of Way line of said West Street, a distance of 140.00 feet to the **Point of Beginning**. (Tract 16)

All that part of Lot 7, LOS COYAS ADDITION, a subdivision of land in the Northwest Quarter of the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 182.09 feet; thence North 88°47'07" East, a distance of 40.00 feet to the **Point of Beginning**, said point being on the East Right of Way line of West Street, as previously established; thence North 01°12'53" West, along the East Right of Way line of said West Street, a distance of 150.00 feet; thence North 88°48'27" East, a distance of 10.00 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 150.00 feet; thence South 88°48'27" West, a distance of 10.00 feet to the **Point of Beginning**. (Tract 17)

Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 482.09 feet; thence North 88°47'07" East, a distance of 40.00 feet to the **Point of Beginning**, said point being on the East Right of Way line of West Street, as previously established; thence North 01°12'53" West, along the East Right of Way line of said West Street, a distance of 150.00 feet to the intersection of the East Right of Way line of said West Street and the South Right of Way line of Irving Street, as previously established; thence North 88°48'27" East, along the South Right of Way line of said Irving Street, a distance of 25.00 feet; thence South 35°39'48" West, a distance of 25.00 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 130.00 feet; thence South 88°48'27" West, a distance of 10.00 feet to the **Point of Beginning**. (Tract 19)

Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 697.09 feet; thence North 88°47'07" East, a distance of 40.00 feet to the **Point of Beginning**, said point being at the intersection of the East Right of Way line of West Street, as previously established and the North Right of Way line of Irving Street, as previously established; thence North 01°12'53" West, along the East

Right of Way line of said West Street, a distance of 145.00 feet; thence North 88°48'27" East, a distance of 10.00 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 125.00 feet; thence South 38°04'36" East, a distance of 25.00 feet to a point on the North Right of Way line of said Irving Street; thence South 88°48'27" West, along the North Right of Way line of said Irving Street, a distance of 25.00 feet to the **Point of Beginning**. (Tract 20)

All that part of Lot 3, LOS COYAS ADDITION, a subdivision of land in the Northwest Quarter of the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 842.09 feet; thence North 88°47'07" East, a distance of 40.00 feet to the **Point of Beginning**, said point being on the East Right of Way line of West Street, as previously established; thence North 03°06'48" East, along the East Right of Way line of said West Street, a distance of 132.51 feet; thence South 01°12'53" East, parallel with the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 132.13 feet; thence South 88°48'27" West, a distance of 10.00 feet to the **Point of Beginning**. (Tract 21)

All that part of the Southeast Quarter of Section 26, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southeast corner of the Northeast Quarter of the Southeast Quarter of said Section 26; thence North 01°12'53" West, along the East line of the Northeast Quarter of the Southeast Quarter, a distance of 835.07 feet; thence South 88°47'07" West, a distance of 40.00 feet to the **Point of Beginning**, said point being on West Right of Way line of West Street, as previously established; thence South 88°27'07" West, a distance of 10.00 feet; thence North 01°12'53" West, parallel with the West Right of Way line of said West Street, a distance of 156.04 feet; thence North 88°25'06" East, a distance of 10.00 feet to a point on the West Right of Way line of said West Street; thence South 01°12'53" East, along the West Right of Way line of said West Street, a distance of 156.05 feet to the **Point of Beginning**. (Tract 23)

Permanent easement for drainage, public utilities and related uses in and to the following-described tract, to-wit:

Temporary construction easements for driveway, drainage, utilities and road construction in and to the following-described tracts, to-wit:

All that part of the Northwest Quarter of Section 36, Township 27 South, Range 1 West of the Sixth Principal Meridian, and being a part of Lot 1, Block 1, WEST WAREHOUSE ADDITION, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Northwest corner of said Northwest Quarter; thence South 00°42'40" East, along the West line of said Northwest Quarter, a distance of 169.00 feet; thence North 89°17'20" East, a distance of 50.00 feet to the **Point of Beginning**, said point being on the existing East Right of Way line of West Street, as previously established; thence North 00°42'40" West, along said existing East Right of Way line, a distance of 49.91 feet; thence North 89°17'20" East, a distance of 10.00 feet; thence South 00°42'40" East, parallel with said East Right of Way Line, a distance of 49.91 feet; thence South 89°14'43" West, a distance of 10.00 feet to the **Point of Beginning**. (Tract 1)

All that part of Lot 1, JOHN L. MILLER ADDITION, a subdivision of land in the Northeast Quarter of Section 35, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in

the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Northeast corner of said Section 35; thence South 00°42'40" East, along the East line of the Northeast Quarter of said Section 35, a distance of 181.78 feet; thence South 89°17'20" West, a distance of 50.00 feet to the **Point of Beginning**, said point being on the West Right of Way line of West Street, as previously established; thence continuing South 89°17'20" West, a distance of 10.00 feet; thence North 00°42'40" West, parallel with the West Right of Way line of said West Street, a distance of 40.26 feet; thence North 88°17'20" East, a distance of 10.00 feet to a point on the West Right of Way line of said West Street; thence South 00°42'40" East, along the West Right of Way line of said West Street, a distance of 40.26 feet to the **Point of Beginning**. (Tract 2)

All that part of Lot 9, LOS COYAS ADDITION, a subdivision in the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of said Section 25; thence North 01°17'34" West, along the West line of said Southwest Quarter, a distance of 1257.94 feet; thence North 88°42'26" East, a distance of 50.00 feet to the **Point of Beginning**; thence North 01°17'34" West, parallel with the West line of said Southwest Quarter, a distance of 10.00 feet; thence North 29°40'37" East, a distance of 29.15 feet to a point on the South Right of Way line of Walker Avenue, as previously established; thence North 88°43'26" East, along the South Right of Way line of Walker Avenue, a distance of 2.50 feet; thence South 01°16'14" East, a distance of 5.00 feet; thence South 12°44'35" West, a distance of 30.92 feet; thence South 88°42'26" West, a distance of 10.00 feet to the **Point of Beginning**. (Tract 9)

All that part of Lot 8, LOS COYAS ADDITION, a subdivision of land in the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 42.11 feet; thence North 88°47'07" East, a distance of 60.00 feet to the **Point of Beginning**; thence North 46°14'33" West, a distance of 14.14 feet; thence North 01°12'53" West, parallel with the West Right of Way line of said West Street, as previously established, a distance of 109.22 feet; thence North 88°47'07" East, a distance of 16.25 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 69.93 feet; thence South 88°47'07" West, a distance of 6.25 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 49.29 feet to the **Point of Beginning**. (Tract 10)

All that part of Lot 9, LOS COYAS ADDITION, a subdivision in the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of said Section 25; thence North 01°17'34" West, along the West line of said Southwest Quarter, a distance of 1320.90 feet to the Northwest corner of the Southwest Quarter of the Southwest Quarter of said Section 25; thence North 88°43'46" West, along the North line of the Southwest Quarter of the Southwest Quarter of said Section 25, a distance of 116.69 feet; thence South 01°16'14" East, a distance of 27.94 feet to the Point of Beginning, said point being on the South Right of Way line of Walker Avenue, as previously established; thence North 88°43'46" East, along the South Right of Way line of said Walker Avenue, a distance of 41.00 feet; thence South 01°17'34" East, a distance of 14.68 feet; thence South 88°43'46" West, parallel with the South Right of Way line of said Walker Avenue, a distance of 41.00 feet; thence North 01°17'34" West, a distance of 14.68 feet to the **Point of Beginning**. (Tract 9)

1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southeast corner of the Northeast Quarter of the Southeast Quarter of said Section 26; thence North 01°12'53" West, along the East line of the Northeast Quarter of the Southeast Quarter of said Section 26, a distance of 97.00 feet; thence South 88°47'07" West, a distance of 50.00 feet to the **Point of Beginning**, thence North 53°00'20" West, a distance of 28.29 feet; thence North 01°12'53" West, parallel with the West Right of Way line of said West Street, a distance of 19.19 feet; thence North 88°29'49" East, a distance of 22.23 feet; thence South 01°12'53" East, parallel with the West Right of Way line of West Street, as previously established, a distance of 36.80 feet to the **Point of Beginning**.
Containing 622.40 square feet (calculated). (Tract 12)

All that part of the Northeast Quarter of the Southeast Quarter of Section 26, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southeast corner of the Northeast Quarter of the Southeast Quarter of said Section 26; thence North 01°12'53" West, along the East line of the Northeast Quarter of the Southeast Quarter of said Section 26, a distance of 66.37 feet; thence South 88°47'07" West, a distance of 125.31 feet to the **Point of Beginning**; thence South 88°29'49" West, a distance of 50.00 feet; thence North 01°30'11" West, a distance of 10.00 feet; thence North 88°29'49" East, a distance of 50.00 feet; thence South 01°30'11" East, a distance of 10.00 feet to the **Point of Beginning**. (Tract 13)

All that part of Lot 7, LOS COYAS ADDITION, a subdivision of land in the Northwest Quarter of the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 245.08 feet; thence North 88°47'07" East, a distance of 50.00 feet to the **Point of Beginning**; thence North 01°12'53" West, parallel with the East Right of Way line of West Street, as previously established, a distance of 39.97 feet; thence North 88°47'07" East, a distance of 10.00 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 39.97 feet; thence South 88°47'07" West, a distance of 10.00 feet to the **Point of Beginning**. (Tract 17)

All that part of Lot 5, LOS COYAS ADDITION, a subdivision of land in the Northwest Quarter of the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 482.09 feet; thence North 88°47'07" East, a distance of 50.00 feet to the Point of Beginning; thence North 01°12'53" West, parallel with the East Right of Way line of West Street, as previously established, a distance of 130.00 feet; thence North 35°39'48" East, a distance of 25.00 feet to a point on the South Right of Way line of Irving Street, as previously established; thence North 88°48'27" East, along the South Right of Way line of said Irving Street, a distance of 12.50 feet; thence South 35°39'48" West, a distance of 29.16 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 57.42 feet; thence South 46°22'15" East, a distance of 62.46 feet; thence South 01°11'33" East, a distance of 25.22 feet; thence South 88°48'27" West, a distance of 54.28 feet to the **Point of Beginning**. (Tract 19)

All that part of Lot 4, LOS COYAS ADDITION, a subdivision of land in the Northwest Quarter of the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 697.08 feet; thence North 88°47'07" East, a distance of 77.72 feet to the **Point of Beginning**, said point being on the North Right of Way line of Irving Street, as previously established; thence North 01°16'14" West, a distance of 10.00 feet; thence North 88°48'27" East, parallel with the North Right of Way line of said Irving Street, a distance of 44.00 feet; thence South 01°16'14" East, a distance of 10.00 feet to a point on the North Right of Way line of said Irving Street; thence South 88°48'27" West, along the North Right of Way line of said Irving Street, a distance of 44.00 feet to the Point of Beginning. (Tract 20)

All that part of Lot 4, LOS COYAS ADDITION, a subdivision of land in the Northwest Quarter of the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 796.27 feet; thence North 88°47'07" East, a distance of 50.00 feet to the **Point of Beginning**; thence North 01°12'53" West, parallel with the East Right of Way line of West Street, as previously established, a distance of 45.82 feet; thence North 88°48'27" East, a distance of 10.00 feet; thence South 01°12'53" East, parallel with the East Right of Way line of said West Street, a distance of 45.82 feet; thence South 88°47'07" West, a distance of 10.00 feet to the **Point of Beginning**. (Tract 20)

All that part of Lot 3, LOS COYAS ADDITION, a subdivision of land in the Northwest Quarter of the Southwest Quarter of Section 25, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southwest corner of the Northwest Quarter of the Southwest Quarter of said Section 25; thence North 01°12'53" West, along the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 888.55 feet; thence North 88°47'07" East, a distance of 50.00 feet to the **Point of Beginning**; thence North 01°12'53" West, parallel with the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 44.65 feet; thence North 88°47'07" East, a distance of 15.00 feet; thence South 01°12'53" East, parallel with the West line of the Northwest Quarter of the Southwest Quarter of said Section 25, a distance of 44.65 feet; thence South 88°47'07" West, a distance of 15.00 feet to the **Point of Beginning**. (Tract 21)

All that part of the Southeast Quarter of Section 26, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southeast corner of the Northeast Quarter of the Southeast Quarter of said Section 26; thence North 01°12'53" West, along the East line of the Northeast Quarter of the Southeast Quarter, a distance of 835.01 feet; thence South 88°47'07" West, a distance of 50.00 feet to the **Point of Beginning**; thence South 88°27'07" West, a distance of 10.00 feet; thence North 01°12'53" West, parallel with the West Right of Way line of West Street, a distance of 37.69 feet; thence North 87°47'07" East, a distance of 10.00 feet; thence South 01°12'53" East, parallel with said West Right of Way line, a distance of 37.63 feet to the **Point of Beginning**. (Tract 23)

All that part of the Southeast Quarter of Section 26, Township 27 South, Range 1 West of the Sixth Principal Meridian, all in the City of Wichita, Sedgwick County, Kansas and being more particularly described as follows:

Commencing at the Southeast corner of the Northeast Quarter of the Southeast Quarter of said Section 26; thence North 01°12'53" West, along the East line of the Northeast Quarter of the Southeast Quarter, a distance of 991.05 feet; thence South 88°47'07" West, a distance of 50.00

feet to the **Point of Beginning**, thence South 88°47'07" West, a distance of 12.00 feet; thence North 01°12'53" West, parallel with the West Right of Way line of West Street, a distance of 19.92 feet to a point on the North line of the subject parcel of land ; thence North 88°25'06" East, along said North line, a distance of 12.00 feet; thence South 01°12'53" East, parallel with said West Right of Way line, a distance of 20.01 feet to the **Point of Beginning**. (Tract 23)

Said temporary easements will be for a term of three years or 60 days after project completion, whichever is earlier. There shall be reasonable ingress and egress to the property remaining at all times throughout the term of the temporary construction easement, whether using current or alternative access points; and the above-described easement area shall not be utilized for general project storage of vehicles, equipment or material and at the conclusion of construction any portions of the above-described easement area disturbed by construction shall be restored by re-grading and re-seeding but without the duty of on-going maintenance, and without replacement of any trees, shrubs, bushes or other vegetation now growing on the property.

Access shall be available to the subject properties throughout the easement term. Said easements will be restored

The temporary easement above described as Tract 13 shall be used to construct a driveway across a City-owned parcel described as:

Beginning at the southeast corner of the Northeast ¼ of the Southeast ¼; thence west 299.7 feet; thence north 67 feet; thence east 299.7 feet; thence south 67 feet to the point of beginning except the south 40 feet for street and except commencing at the southeast corner of the Northeast ¼ of the Southeast ¼; thence north 39.8 feet and westerly 40 feet for a point of beginning, said point of beginning being the west right-of-way line of West Street; thence west along the north right-of-way line of Walker Avenue 25 feet; thence north 27 feet; thence easterly 25 feet; thence south 27 feet to the point of beginning, Section 26-Township 27-Range 1 West of the 6th PM.

Said driveway shall be thirty feet-wide and shall be constructed to commercial standards. The driveway shall be dedicated to and be used by the owners of the property commonly known as 1033/1035 South West Street and described as"

Beginning at the southeast corner of the Northeast ¼ of the Southeast ¼ ; thence west 299.7 feet; thence north 134 feet; thence east 299.7 feet; thence south 135 feet to the point of beginning except the south 67 feet thereof, Section 26-Township 27-Range 1 West of the 6th PM.

SECTION 3. That the City Attorney is hereby authorized and directed to commence proceedings in eminent domain in the District Court of Sedgwick County, Kansas, for the appropriation of said lands and determination of the compensation to be awarded for the taking thereof.

SECTION 4. That this Ordinance shall take effect and be in force from and after its passage and publication once in the official City paper.

ADOPTED at Wichita, Kansas, this 11th day of, December 2018.

CITY OF WICHITA

Jeff Longwell, Mayor

ATTEST:

Karen Sublett, City Clerk

APPROVED AS TO FORM:

Jennifer Magana, Director of Law and City Attorney